

Brahmpal Singh v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 27 May 2013 · WRIT - C No. 30182 of 2013 · **Writ disposed of; petitioner relegated to a clause 6.5 representation for payment facility.**

HEADNOTE

A consumer who does not dispute an assessment bill and seeks only time to pay has an alternative remedy under clause 6.5 of the Electricity Supply Code, 2005. The competent authority may grant a payment facility and must consider financial stress and other aspects placed before it. The writ was disposed of with liberty to make a fresh representation, to be decided preferably within three weeks.

FACTUAL SUMMARY

Brahmpal Singh petitioned the Allahabad High Court against the State of Uttar Pradesh and the power corporation over an assessment bill. He did not dispute the liability and said he was ready to pay the entire amount within the time required, seeking a payment facility because of financial hardship. Standing Counsel and counsel for the Power Corporation appeared. The petition was heard and disposed of the same day without any examination of the billed amount.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

payment facility on assessment bill (financial stress)

HOLDING

Where the consumer does not dispute an assessment bill and seeks only a facility in payment, clause 6.5 of the Electricity Supply Code, 2005 is the alternative remedy: the competent authority may grant that facility and is to consider financial stress and other aspects placed by the consumer. The writ court will not decide the request on merits and will dispose of the petition with liberty to make a fresh representation, to be decided preferably within three weeks.

¶ 1

FLAG Court treated cl. 6.5 as authorising payment facility for financial stress; catalog hits treat 6.5 as billing-objection.